

1.

CASE #	CASE NAME	HEARING NAME
CVPS2506302	SCOTT VS ZHANG	MOTION TO VACATE ORDER SUSTAINING DEMURRER WITHOUT LEAVE TO AMEND BY RICHARD SCOTT, PHYLLIS E. JONES

Tentative Ruling: A motion for reconsideration must be based on new or different facts, circumstances or law. (C.C.P. §1008(a).) The legislative intent was to restrict these motions to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden is comparable to that of a party seeking a new trial on the ground of newly discovered evidence; that is, the information must be such that the moving party could not with reasonable diligence have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-13.) A motion for reconsideration must be brought within 10 days of the service of the written notice of entry of the order (C.C.P. §1008(a)), while a renewal of a motion under C.C.P. §1008(b) has no explicit time limit.

“The ‘different state of facts’ language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier.” (*Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.) “The moving party’s burden is the same as that of a party seeking new trial on the ground of ‘newly discovered evidence, which he could not, with reasonable diligence, have discovered and produced at the trial.’” (*Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1198.) And so the moving party must provide the trial court with a satisfactory explanation as to why he or she failed to produce the evidence at an earlier time. (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338; *Lucas v. Santa Maria Public Airport Dist.* (1995) 39 Cal.App.4th 1017, 1028.)

The trial court does retain the inherent authority to change its decision at any time prior to the entry of judgment, whether it is changing its conclusion of law or findings of fact. (*Darling, Hall & Rae v. Kritt* (1999) 75 Cal.App.4th 1148, 1156; *Nave v. Taggart* (1995) 34 Cal.App.4th 1173, 1177.) The court’s inherent powers to reevaluate its prior rulings on its own motion is unaffected by the jurisdictional limitations of C.C.P. §1008 governing motions for reconsideration, so as long as the court exercises due consideration before modifying, amending, or revoking its prior orders. (*Schachter v. Citigroup, Inc.* (2005) 126 Cal.App.4th 726, 737.) However, if the court is inclined to reconsider on its own motion, whether at the prompting of a motion that fails to meet with the procedural requirements of C.C.P. §1008 or because of “an unprovoked flash of understanding in the middle of the night,” “[t]o be fair to the parties, if the court is seriously concerned that one of its prior interim rulings might have been erroneous, and thus that it might want to reconsider that ruling on its own motion... it should inform the parties of this concern, solicit briefing, and hold a hearing.” (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108.)

Plaintiffs’ motion cites no new or different facts, circumstances, or law. The court notes that Plaintiffs motion, while labelled as being made pursuant to CCP 1108 and

473(b), in terms of the motion for reconsideration, the argument is based upon their reminding the court of its inherent authority to correct their own errors. (*Id* at 1108-1109.) However, in this circumstance the court declines to reconsider its prior ruling regarding the sustaining of the demurrer to the First Amended Complaint without leave to amend.

Plaintiffs' motion also moves to vacate the order under CCP 473(b), which states "The court may, upon any terms as may be just, relieve a party of the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party **through the party's mistake, inadvertence, surprise, or excusable neglect.**" (CCP 473(b), emphasis added.) Here, Plaintiffs' motion does not address any type of error committed by Plaintiffs, but instead highlights their belief of the court's error in application of law in the demurrer to the First Amended Complaint.

Motion to Vacate Order Sustaining Demurrer to the First Amended Complaint Without Leave to Amend is DENIED.

Case Management Conference is continued to September 10, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507284	KORETOFF VS THE BIG DEAL SOLAR INC.	MOTION TO SET ASIDE DEFAULT

Tentative Ruling: A motion for relief from default must be filed within six months of the clerk's entry of default and also within a "reasonable time" after discovery of the default. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.) A delay of three or more months or more is an unofficial standard under which courts will routinely deny relief unless there is a satisfactory explanation for the delay. (*Stafford v. Mach* (1998) 64 Cal.App.3d 1174, 1184.) The time runs from the entry of the default, not the default judgment. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.)

The application for relief "shall be accompanied by a copy of the answer or other pleading proposed to be filed ... otherwise the application shall not be granted." (C.C.P. § 473(b).) If the order to be set aside is the result of a failure to provide discovery responses, for example, the application must be accompanied by verified responses to the discovery requests. (*Rodriguez v. Brill* (2015) 234 Cal.App.4th 715, 729.)

Defendant has failed to procedurally comply with CCP 473(b) in failing to submit a copy of an answer or other responsive pleading. Additionally, the motion to set aside default is signed "The Big Deal Solar, Inc. Defendant, Self-Represented". A corporation is not permitted to represent itself in California. *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141.

Motion to Set Aside Default DENIED.

Case Management Conference on July 9, 2026 is VACATED.

OSC re Status of Representation of The Big Deal Solar, Inc. is VACATED.

OSC re default judgment is set for December 22, 2026.